

26STCV02620 26STCV02620

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-07-30

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Case Number: 26STCV02620 Hearing Date: July 30, 2026 Dept: 316

BACKGROUND

This case is a property dispute. Plaintiff Carlos Comeaux, Trustee of the In Memory of the Hurdie Marshall and Ruth Collins Living Trust requests the Court issue an injunction to postpone the foreclosure sale of the subject property.

On January 27, 2026,
Plaintiff filed a complaint against Defendants FCI Lender Services, Inc. and AGI Logistics Holdings LLC.

On March 4, 2026,
Defendants filed a demurrer.

No opposition or reply has
been filed.

TENTATIVE RULING

Defendants' demurrer to
Plaintiff's complaint is SUSTAINED without leave to amend.

Accordingly, judgement is
entered in favor of Defendants.

LEGAL STANDARD

"[A] demurrer tests the

legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; see also Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

REQUEST FOR JUDICIAL NOTICE

Here, Defendants request the Court take judicial notice of four exhibits: (1) Deed of Trust, dated January 13, 2023, and recorded January 23, 2023, in the Recorder's Office, Los Angeles County, California as Document No. 20230043969; (2) Notice of Default and Election to Sell Under Deed of Trust, dated July 3, 2025, and recorded July 8, 2025, in the Recorder's Office, Los Angeles County, California as Document No. 20250455960; (3) Notice of Trustee's Sale, dated October 9, 2025, and recorded October 14, 2025, in the Recorder's Office, Los Angeles County, California as Document No. 20250707141; (4) Trustee's Deed Upon Sale, dated November 21, 2025, and recorded December 1, 2025, in the Recorder's Office, Los Angeles County, California as Document No. 20250856494.

The document for which

judicial notice is sought were not submitted to the Court with any filing and there is no declaration authenticating them. For these reasons, the Court will not take judicial notice of these documents under Evidence Code section 452, subdivision (h).

DISCUSSION

I.

Meet
and Confer

Before filing a demurrer or motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, the parties discussed the demurrer by telephone. (See Wilkinson Decl., ¶ 2.) Thus, the meet and confer requirement has been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).)

II.

Plaintiff's
Action is Moot

"A case is moot when the reviewing court cannot provide the parties with practical, effectual relief." (In re Oliveras (2024) 103 Cal.App.5th 771, 776.) Put another way, "A case becomes moot when events "'render[] it impossible for [a] court, if it should decide the case in favor of plaintiff, to grant him any effect[ive] relief.'"" (In re S.R. (2025) 18 Cal.5th 1042, 1042.)

Plaintiff's complaint contains only one cause of action, which is for equitable relief by injunction. Plaintiff requests the Court grant an injunction to postpone the foreclosure sale on the subject property and to stop the sale deed from being recorded. (See Compl., ¶ 12, Prayer for Relief, ¶ 1.) However, as acknowledged in the Complaint, the foreclosure sale took place on November 5, 2025, approximately two months

before Plaintiff pursued this action. (See *id.*) Thus, even if the Court ruled in Plaintiff's favor, the Court would not be able to grant effective relief because the property is in the possession of a new legal owner. (See *In re S.R.* (2025) 18 Cal.5th 1042, 1042; see also *In re Oliveras* (2024) 103 Cal.App.5th 771, 776.)

For these reasons, this matter is moot and the demurrer is sustained.

CONCLUSION

For the foregoing reasons, Defendants' demurrer to Plaintiff's complaint is SUSTAINED without leave to amend.

Judgment is entered in favor of Defendants.